IHL Assignments 2.1–2.3 – Answers

Status of persons in armed conflict · Direct participation in hostilities · Gender and IHL — based on the week 2 lecture notes, the ICRC Interpretive Guidance on DPH (2009), Durham & O'Byrne (2010) and Tirosh (2025)

Abbreviations. HR = 1907 Hague Regulations; GC = Geneva Convention (1949); AP = Additional Protocol (1977); IAC/NIAC = international/non-international armed conflict; POW = prisoner of war; DPH = direct participation in hostilities; CCF = continuous combat function; CIHL = customary IHL (ICRC Study, 2005).

2.1 Malmontese and Camontese combatants and civilians

Step 1 – Classification and applicable law

- **Two states**: Camonte seceded lawfully under the CPA and was admitted to the UN, so it is a state. Malmonte's view that the breakaway was "unconstitutional" is irrelevant – classification is factual and independent of *jus ad bellum* or recognition.
- Malmonte's ground invasion (September 2022) is a **resort to armed force between states** → an **IAC** (CA2; *Tadic*). No intensity threshold is needed. The unlawfulness of the invasion (aggression, UN Charter Art. 2(4)) does not affect the equal application of IHL.
- Once the Malmontese seize and hold the base and its surroundings, the area under their effective control is **occupied** (Art. 42 HR; CA2(2)).
- **Applicable law**: HR 1907, GC I–IV, **AP I** (both are parties) and CIHL. AP II is not relevant (it applies only in NIACs).
- **Method** (lecture): first determine **primary status** (combatant or civilian), then **secondary status** (POW under GC III, wounded and sick under GC I, protected civilian under GC IV) and its consequences.

Step 2 – Assessment of each Camontese actor

(1) The 20 members of Camonte's regular armed forces (17 unwounded + 3 wounded)

- **(a) Status**: **combatants** – members of the armed forces of a party (Art. 43(1)–(2) AP I; Art. 4A(1) GC III; Art. 1 HR).
- **(b) Right to participate / immunity**: **yes** – combatants "have the right to participate directly in hostilities" (Art. 43(2) AP I). They have **combatant immunity**: Malmonte may not prosecute them for lawful acts of war (e.g. firing on the attacking company), only for war crimes (Arts. 82–88, 99 and 129 GC III).
- **(c) Protection against attack**: as combatants they could be attacked at all times **during the fighting**. But once the base **surrendered** they are **hors de combat** (Art. 41(1)–(2) AP I: in the power of the adversary / clearly expressing an intention to surrender) and may **not be attacked**; denying quarter is prohibited (Art. 40 AP I; Art. 23(d) HR). The **three wounded** are additionally protected as wounded and sick (Art. 12 GC I; Art. 10 AP I): they must be respected, protected, collected and cared for without adverse distinction.
- **(d) POW status**: **yes** – all 20 are POWs upon capture (Art. 4A(1) GC III; Art. 44(1) AP I), protected from the moment they fall into enemy hands until final release and repatriation (Arts. 5, 118 GC III). The wounded are POWs too (Art. 14 GC I), but GC I governs their medical care first. They may be interned to prevent their return to the fight – not as punishment (Art. 21 GC III).

(2) The two civilian aircraft maintenance crew members and the supply contractor

- **(a) Status**: **civilians** – they are not members of the armed forces (Art. 50(1) AP I). They are "**persons who accompany the armed forces without actually being members thereof**", such as "supply contractors" and members of "services responsible for the welfare of the armed forces" (Art. 4A(4) GC III), provided they are **authorized** by the armed forces they accompany (they should carry an **identity card**, Annex IV GC III – the card is evidence, not a condition of status).
- **(b) Right to participate / immunity**: **no** – civilians have no right to participate and **no combatant immunity**. If they took part in the fighting (e.g. fired at the Malmontese), they can be prosecuted under Malmontese law for doing so.
- **(c) Protection against attack**: **yes**, "**unless and for such time as** they take a direct part in hostilities" (Art. 51(3) AP I; ICRC Guidance, Rec. III). General **maintenance** of aircraft and **supply** are war-sustaining support, not DPH (no direct causation, ICRC Rec. V). Only if their acts were integral to a specific operation (e.g. arming an aircraft for an imminent strike) would they lose protection. Working on an air base, they face an increased risk of **incidental** harm when the base (a military objective) is attacked – they must still be counted in the proportionality assessment.
- **(d) POW status**: **yes** – although civilians, they are entitled to POW status under Art. 4A(4) GC III. In case of doubt, they are treated as POWs until a **competent tribunal** decides (Art. 5(2) GC III; Art. 45 AP I).

(3a) The medic with the regular Red Cross armlet (Art. 40 GC I) – permanent medical personnel

- **(a) Status**: a member of the armed forces, but **not a combatant**: Art. 43(2) AP I expressly excludes medical and religious personnel. He or she is **permanent medical personnel** "exclusively engaged" in medical duties (Art. 24 GC I), identified by the armlet and identity card (Art. 40 GC I). *(The lecture describes them as "civilians"; legally they remain members of the armed forces with non-combatant status, but for protection purposes they are treated similarly to civilians.)*
- **(b) Right to participate / immunity**: **no right to take part** in hostilities. They may carry light individual weapons to defend themselves and the wounded (Art. 22(1) GC I; Art. 13(2)(a) AP I). Acting within their medical role they commit no offence; if they took part in combat they would lose their special protection.
- **(c) Protection against attack**: **yes** – they "shall be respected and protected in all circumstances" (Art. 24 GC I; Art. 15 AP I) unless they commit, outside their humanitarian function, acts harmful to the enemy.
- **(d) POW status**: **no – not POWs but "retained personnel"**. They may be retained only as long as needed to care for POWs (Art. 28 GC I; Art. 33 GC III); they receive at least the benefits of GC III and must be returned when no longer needed (Art. 30 GC I).

(3b) The medic with the miniature Red Cross armlet (Art. 41 GC I) – auxiliary medical personnel

- **(a) Status**: **combatant** – a member of the armed forces specially trained for use, when needed, as a hospital orderly, nurse or stretcher-bearer (Art. 25 GC I). The miniature armlet shows auxiliary status (Art. 41 GC I).
- **(b) Right to participate / immunity**: **yes** – as a combatant, he or she has combatant immunity for lawful acts of war.
- **(c) Protection against attack**: protected **only while carrying out medical duties** at the time of contact with the enemy (Art. 25 GC I). Otherwise a lawful target like any combatant – but now hors de combat after the surrender.
- **(d) POW status**: **yes** – a POW, but to be employed on medical duties as needed (Art. 29 GC I).

(4) The deputy sheriff

- **(a) Status**: **civilian**. Police and other law-enforcement agencies are civilian unless a party **incorporates them into its armed forces** and **notifies** the other party (Art. 43(3) AP I). Nothing

suggests this; dealing with minor crimes and misdemeanours is a law-enforcement role. *(If he were in fact military police of the armed forces, he would be a combatant and a POW.)*

- **(b) Right to participate / immunity**: **no** – no right to participate and no immunity; any participation in the fighting could be prosecuted.
- **(c) Protection against attack**: **yes**, unless and for such time as he directly participates. Ordinary policing (arresting petty offenders) lacks a **belligerent nexus** and is not DPH (ICRC Rec. V). But firing at the Malmontese during the attack would be DPH.
- **(d) POW status**: **no** – he does not accompany the armed forces in the sense of Art. 4A(4) GC III. He is a **protected person under GC IV** (Camontese national in Malmontese hands, Art. 4 GC IV). He may only be **interned or placed in assigned residence** for **imperative reasons of security** (Art. 78 GC IV in occupied territory; Arts. 41–43 GC IV if taken to Malmonte), not arbitrarily (lecture: Art. 79 GC IV), with periodic review. If he participated, he may be prosecuted, with fair trial guarantees (Arts. 64–75 GC IV; Art. 75 AP I).

(5) The correspondent for The Camonte Times

- **(a) Status**: **civilian**. Journalists engaged in dangerous professional missions in areas of armed conflict are civilians (Art. 79(1) AP I).
- **(b) Right to participate / immunity**: **no**.
- **(c) Protection against attack**: **yes**, as long as they take no action adversely affecting their status as civilians (Art. 79(2) AP I). Reporting, even patriotic or propagandistic reporting, is **not DPH** (no direct causation – ICRC Guidance). Being on an air base exposes them to incidental harm.
- **(d) POW status**: **it depends on accreditation**. If he or she is an **authorized war correspondent** accompanying the armed forces (with an identity card), they are entitled to **POW status** (Art. 4A(4) GC III; Art. 79(2) AP I). The facts ("works on the base as a correspondent") suggest this may be the case. If not accredited, they are a civilian **protected person under GC IV** who may only be interned for imperative security reasons (Art. 78 GC IV). In case of doubt, Art. 5 GC III / Art. 45 AP I apply.

(6) The "angry mob" of armed Camontese farmers

The key question is whether they form a **levée en masse**: "inhabitants of a **non-occupied territory**, who on the **approach of the enemy spontaneously take up arms** to resist the invading forces, **without having had time to form themselves into regular armed units**, provided they **carry arms openly** and **respect the laws and customs of war**" (Art. 2 HR; Art. 4A(6) GC III).

- **Arguments for**: the area is still **Camonte-controlled** (not occupied); the invasion is ongoing and the enemy is **approaching**; they acted **spontaneously** after hearing the base had fallen; they are visibly carrying small arms and machetes (**openly**); there was no time to organize.
- **Doubts**: it is unclear whether they respect IHL (an "angry mob" may not); a levée en masse is exceptional (lecture: e.g. Crete/Greece 1941) and is meant for the population of a **territory** resisting invasion, not a small group attacking a patrol; and it applies only to the **moment of invasion** – once the area is occupied, resistance requires organization under Art. 4A(2) GC III.
- **If a levée en masse (the better view on these facts)**: (a) **combatants**; (b) **right to participate and combatant immunity** – they cannot be prosecuted for lawfully fighting the patrol; (c) **may be attacked** while participating (not protected); (d) **POW status** upon capture (Art. 4A(6) GC III).
- **If not**: (a) **civilians**; (b) **no right/immunity** – they can be prosecuted under Malmontese law for attacking the patrol; (c) they lose protection "**for such time as**" they take a direct part – charging armed at soldiers clearly meets the **threshold of harm, direct causation and belligerent nexus**, so the patrol may use force against them while they attack (though only what is necessary, ICRC Rec. IX); they regain protection once they stop (revolving door); (d) **no POW status** – they are protected persons

under GC IV and can be interned for security reasons and tried with fair trial guarantees (Art. 75 AP I); in doubt, Art. 45 AP I presumption of POW status applies until a tribunal decides.

Summary table

Actor	(a) Status	(b) Right / immunity	(c) Protected from attack?	(d) POW?
17 soldiers	Combatants	Yes	No while fighting; yes once surrendered (hors de combat)	Yes
3 wounded soldiers	Combatants	Yes	Yes – hors de combat + GC I	Yes (GC I care first)
Maintenance crew (2) + supply contractor	Civilians accompanying the armed forces	No	Yes, unless/for such time as DPH (maintenance and supply ≠ DPH)	Yes (Art. 4A(4) GC III)
Medic – Art. 40 armlet	Permanent medical personnel (armed forces, non-combatant)	No (light arms for self-defence only)	Yes (Art. 24 GC I)	No – retained personnel
Medic – Art. 41 armlet	Auxiliary medical personnel = combatant	Yes	Only while on medical duties	Yes (Art. 29 GC I)
Deputy sheriff	Civilian (unless police incorporated, Art. 43(3) AP I)	No	Yes, unless DPH	No – GC IV protected person; internment only if imperative security
Journalist	Civilian (Art. 79 AP I)	No	Yes, unless DPH	Only if accredited war correspondent (Art. 4A(4)); otherwise GC IV
Armed farmers	Combatants if levée en masse; otherwise civilians DPH	Yes if levée en masse; otherwise no	No while attacking (either way)	Yes if levée en masse; otherwise no (GC IV)

2.2 Direct participation in hostilities and continuous combat function

(a) What is understood by DPH?

Civilians are protected against direct attack "**unless and for such time as they take a direct part in hostilities**" (Art. 51(3) AP I; Art. 13(3) AP II; CA3 "active part"; CIHL Rule 6). Treaties do not define DPH. According to the ICRC Interpretive Guidance (2009), DPH refers to **specific acts** by individuals as part of the conduct of hostilities between parties (Rec. IV) that meet **three cumulative criteria** (Rec. V):

1. **Threshold of harm**: the act must be likely to adversely affect the military operations or capacity of a party, or to inflict death, injury or destruction on protected persons or objects;
2. **Direct causation**: a direct causal link (one causal step) between the act and the harm, either from the act itself or from a coordinated military operation of which it is an integral part;
3. **Belligerent nexus**: the act must be specifically designed to cause that harm in support of one party and to the detriment of another.

It includes **preparation, deployment and return** (Rec. VI). A civilian loses protection only **for the duration of each act** (Rec. VII) and regains it afterwards (the "**revolving door**"). In doubt, the person is presumed protected (Rec. VIII). DPH is not itself a war crime, but the civilian has no combatant immunity

(Rec. X).

(b) Examples

DPH	Not DPH
Firing at enemy forces; planting an IED or laying mines; sabotage of military installations	Producing weapons or ammunition in a factory; assembling an IED in a workshop (without placing it)
Transmitting tactical targeting intelligence; acting as a lookout during an ambush	General intelligence gathering not linked to a specific operation; propaganda
Driving ammunition to an active firing position at the front	Transporting ammunition from a factory to a port or storehouse
Operating a weapons system or drone; computer network attacks on military systems	Financing, recruiting, general training; providing food, shelter or medical care
Voluntary human shields physically blocking a ground operation; the armed farmers charging the patrol (2.1)	Involuntary human shields; self-defence against prohibited violence; riots and ordinary crime (no belligerent nexus)

(c) What is understood by CCF?

In NIACs, organized armed groups are the armed forces of a non-State party and consist only of individuals whose **continuous function it is to take a direct part in hostilities** (ICRC Rec. II). CCF requires **lasting integration** into the group: a continuous function involving the preparation, execution or command of acts amounting to DPH. Such persons are **not civilians** and lose protection **for as long as they assume that function** (Rec. VII) – even when not fighting (e.g. asleep at home) – until they clearly disengage. A person recruited, trained and equipped to fight has CCF before the first attack. Recruiters, financiers, propagandists, cooks and political leaders without a combat role do **not** have CCF. CCF does **not** give combatant privilege or POW status (lecture: in NIACs there is no combatant status).

(d) Differences between DPH and CCF

	DPH	CCF
Basis	Conduct – a specific hostile act	Function – membership of an organized armed group
Who	Civilians (any civilian can participate occasionally)	Members of organized armed groups of a non-State party (mainly NIACs)
Status	Remains a civilian throughout	Not a civilian (for targeting purposes)
Loss of protection	Only for the duration of each act (incl. preparation, deployment, return)	Continuous, for as long as the function lasts
Revolving door	Yes – protection regained between acts	No – regained only by clearly disengaging
Target identification	The person must be engaged in the act	Membership must be established (uniform, signs, weapons, repeated DPH for the group)
After capture	Civilian; GC IV/CA3; may be prosecuted	No POW status in NIAC; CA3, AP II, CIHL; may be prosecuted

(e) Rationale for CCF

- **Equality between the parties**: State soldiers may be attacked at any time on the basis of membership. Without CCF, fighters of armed groups would be civilians who could only be attacked while actually fighting – a serious **asymmetry** favouring armed groups.

- **Avoiding abuse of the revolving door**: “farmer by day, fighter by night” – full-time fighters could otherwise regain protection between operations and use it as a shield.
- **Protecting real civilians**: by limiting group membership to those with a **combat function** (not all affiliates or supporters), CCF prevents the opposite danger – treating whole communities, families or political wings as targets.
- **Coherence with the principle of distinction**: CCF draws the civilian/fighter line in NIACs in a way that mirrors the armed forces/civilian line in IACs, while keeping the **three DPH criteria** as the measure of a “combat function”.
- **Practice**: the lecture notes that CCF has increasingly been adopted in state practice, including by NATO states.

(f) Do you agree? – A reasoned position

I broadly agree with CCF, as a balanced and necessary solution, though with some reservations:

- **For**: it closes the revolving-door loophole for full-time fighters while keeping occasional participants and supporters (including many women and children in support roles – Durham & O’Byrne) protected as civilians. It is **functional, not identity-based**, which helps resist stereotypes such as treating all “military-age males” as fighters.
- **Critique from the military side** (e.g. Schmitt, Watkin): CCF is **too narrow** – it remains **asymmetrical**, because a State army cook or clerk is always targetable while an armed group’s logistician or recruiter is not; it is also hard to apply in practice.
- **Critique from the humanitarian side**: CCF can be **too broad** – membership is hard to verify, may rest on patterns of life and intelligence assessments, and can lead to lethal targeting of people who have quietly disengaged; it effectively makes people targetable because of who they are rather than what they do.
- **My view**: the concept is right, but it is only acceptable together with the **safeguards** of the Guidance: a strict requirement of a genuine **combat** function, the **presumption of civilian status** in case of doubt (Rec. VIII), and the **restraint on force** (Rec. IX) where capture is feasible without additional risk. Without these, CCF risks expanding targeting rather than clarifying it.

2.3 Gender and IHL – Reflection

Beyond “virgins and mothers”: making IHL see gender

International humanitarian law presents itself as neutral. Its core rules – distinction, proportionality, humane treatment – are addressed to “persons”, and its non-discrimination clauses prohibit any “adverse distinction founded on sex”. Yet the treaties were written in 1907, 1949 and 1977 by male diplomats drawing on male experiences of war, and it shows. In my view, the problem is not that IHL lacks rules relevant to gender, but that it was built around one gendered figure – the male combatant – and treats everyone else, especially women, as objects of protection defined by their bodies. The way forward lies less in new treaties than in a gender-sensitive interpretation of existing law.

The clearest sign of this is how IHL speaks about women. Of the roughly 42 provisions that mention women in the Geneva Conventions and Protocols, almost half concern pregnant women and mothers of young children (Gardam and Jarvis, cited by Durham and O’Byrne). Women appear as reproductive bodies to be shielded, or as bearers of “honour”: Article 27 of the Fourth Geneva Convention protects women “against any attack on their honour, in particular against rape”. As our lecture put it, the law seems to know women only as “virgins and mothers”. This framing locates the harm of sexual violence in the loss of chastity and family honour rather than in the violation of the person’s autonomy and

dignity. It also makes the survivor's value depend on social norms of modesty – the same norms that, as Tirosh describes, were used in Israel to keep women out of public shelters during missile attacks.

The law has partly corrected itself. Additional Protocol II (Article 4(2)(e)) speaks of "outrages upon personal dignity", including rape, without mentioning honour. The ICTY and ICTR, in Akayesu, Furundžija and Kunarac, established that rape can be a war crime, a crime against humanity and genocide, and the Rome Statute lists rape, sexual slavery, enforced prostitution, forced pregnancy and enforced sterilisation as international crimes in both IACs and NIACs. These developments show that IHL can evolve through interpretation and criminal law. But they also reveal a new risk, noted in the lecture: by making sexual violence against women the central "gender issue", we may reinforce the stereotype of women as passive victims and men as perpetrators.

That stereotype harms everyone. Women are not only victims; they fight, command, spot and kill. Female surveillance soldiers in Israel warned of the 7 October attack and were ignored (Tirosh); women formed large parts of guerrilla forces in Nepal, Sri Lanka and Eritrea; and women like Pauline Nyiramasuhuko have committed atrocities (Durham and O'Byrne). When law and society assume women are harmless, they fail both to protect women fighters, whose status and post-conflict reintegration are overlooked, and to apply the principle of distinction accurately. The functional tests of the ICRC's Interpretive Guidance on direct participation are helpful here: they ask what a person does, not what sex they are. Applied honestly, they reject the practice of presuming that "military-age males" are fighters, and they recognise that many women in support roles remain civilians.

Men, too, are made invisible by IHL's gendered lens. Sexual violence against men and boys – from Abu Ghraib to detention centres in Syria – is widespread but rarely reported or prosecuted, partly because it is seen as emasculating and partly because many Security Council resolutions focus only on women and girls. The ICTY's ■eši■ case, which recognised forced fellatio as rape, shows that a gender-neutral definition is possible and necessary.

The greatest gap, however, concerns LGBTQIA+ people, who are entirely absent from IHL treaties. Yet armed conflict often targets them precisely because of their sexual orientation or gender identity: armed groups such as ISIS executed men accused of homosexuality, and detainees may be subjected to humiliation designed around sexuality or gender expression. Where IHL provides "separate quarters" for women and men in detention (Article 25 GC III, Article 76 GC IV) or requires searches by persons of the same sex (Article 97 GC IV), it assumes a binary that leaves transgender and non-binary detainees exposed. The Rome Statute's definition of gender as "the two sexes, male and female, within the context of society" (Article 7(3)) is similarly narrow, although the ICC's more recent policy on gender-based crimes reads it as including sexual orientation and gender identity.

I would argue that these persons are already protected – if IHL is read properly. The prohibition of "adverse distinction" in Common Article 3, Article 75 of Additional Protocol I and Article 4 of Additional Protocol II lists sex alongside "any other similar criteria", which can and should include sexual orientation and gender identity. The rules on humane treatment, dignity and the prohibition of humiliating and degrading treatment apply to every person in the power of a party. And because IHL applies alongside human rights law, the broader understanding of non-discrimination developed by human rights bodies should inform how detention, searches and medical care are organised. In my view, the ICRC's growing work on the gendered impacts of armed conflict, which calls for gender to be integrated into how IHL is applied, is the right approach.

In conclusion, I agree with Durham and O'Byrne that we do not need new treaties, which might risk weakening existing protections, but a different reading of the ones we have. A gender-sensitive IHL would protect women as persons with autonomy, not as mothers or carriers of honour; recognise

women as fighters and men as victims; and explicitly include LGBTQIA+ people through the principle of non-discrimination. As Tirosh reminds us, gender is not a “lifestyle” topic to be postponed until the guns fall silent: it determines who is seen, who is protected and who is heard in war.

Word count: approximately 951 words.

Key takeaways

- **Malmonte v. Camonte is an IAC** (two states; secession recognized by UN admission), governed by HR, GC I–IV, AP I and CIHL; the illegality of the invasion is irrelevant to IHL.
- **Regular soldiers** (incl. wounded) = combatants with immunity, attackable only until hors de combat, POWs on capture.
- **Civilians accompanying the forces** (maintenance crew, contractor, accredited war correspondent) = civilians, no immunity, protected unless DPH – but **POWs** under Art. 4A(4) GC III.
- **Medical personnel**: Art. 40 armlet = permanent, protected, **retained personnel** (not POWs); Art. 41 armlet = auxiliary, combatant, protected only on medical duty, POW.
- **Deputy sheriff and non-accredited journalist** = civilians protected under GC IV; internment only for imperative security reasons.
- **Armed farmers**: likely a **levée en masse** (combatants, immunity, POWs); if not, civilians who lose protection while directly participating and may be prosecuted.
- **DPH** = specific act meeting threshold of harm + direct causation + belligerent nexus; protection lost only for the duration of each act (revolving door).
- **CCF** = membership-based loss of protection for fighters of organized armed groups; it restores balance with State forces but needs strict safeguards (doubt → civilian; necessity restraint).
- **Gender**: IHL treats women mainly as mothers and bearers of “honour” and ignores LGBTQIA+ people; the best response is gender-sensitive **interpretation** of non-discrimination, dignity and humane-treatment rules rather than new treaties.